

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
K.S., AN INFANT UNDER THE AGE OF 16 YEARS, BY
HIS MOTHER AND NATURAL GUARDIAN, TEKYA
BOOTHE, TEKYA BOOTHE, INDIVIDUALLY, JOSE
LOPEZ, AN INFANT UNDER THE AGE OF 16 YEARS,
BY HIS MOTHER AND NATURAL GUARDIAN,
AUGUSTINA BALU, and AUGUSTINA BALU,
INDIVIDUALLY,

Plaintiffs,

Index No. 508277/2013

-against-

**SECOND AMENDED
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, OFFICER RUDOLPH
GUARNACCIA, shield number 8793, Individually and as a
New York City Police Officer and employee of The City of
New York, OFFICER JARAD DIETZEL, Individually and
as a New York City Police Officer and employee of The
City of New York and OFFICER ABDULLAH, 942924,
Individually and as a New York City Police Officer and
employee of The City of New York,

Defendants.

-----X

Plaintiffs, K.S., AN INFANT UNDER THE AGE OF 16 YEARS, BY HIS
MOTHER AND NATURAL GUARDIAN, TEKYA BOOTHE, TEKYA BOOTHE,
INDIVIDUALLY, JOSE LOPEZ, AN INFANT UNDER THE AGE OF 16 YEARS, BY HIS
MOTHER AND NATURAL GUARDIAN, AUGUSTINA BALU, and AUGUSTINA BALU,
INDIVIDUALLY, by their attorneys, SANDERS, SANDERS, BLOCK, WOYCIK, VIENER &
GROSSMAN, P.C., as and for their Verified Complaint, herein respectfully allege, upon
information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFFS K.S., AN INFANT UNDER THE AGE OF 16 YEARS, BY HIS
MOTHER AND NATURAL GUARDIAN, TEKYA BOOTHE, TEKYA
BOOTHE, INDIVIDUALLY, JOSE LOPEZ, AN INFANT UNDER THE AGE**

OF 16 YEARS, BY HIS MOTHER AND NATURAL GUARDIAN, AUGUSTINA BALU, and AUGUSTINA BALU, INDIVIDUALLY: 42 U.S.C. section 1983, excessive force and violation of plaintiff's civil and constitutional rights.

FIRST: This is an action for damages sustained by citizens of the United States of America against The City of New York, The New York City Police Department and Officers of the City of New York who violated plaintiffs' Federal and State Constitutional and Civil rights, including but not limited to the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, who unlawfully assaulted plaintiffs, and who acted negligently as Officers employed by The City of New York, which are sued as a person under 42 U.S.C section 1983.

SECOND: This action is brought pursuant to 42 U.S.C. section 1983 and the First, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and arising under the law and statutes of the State of New York, including but not limited to New York Civil Rights Law Section 40-c.

THIRD: That at all the times hereinafter mentioned, plaintiff, K.S., was and still is an infant, suing herein by his Mother and Natural Guardian, TEKYA BOOTHE.

FOURTH: That at all the times hereinafter mentioned, plaintiff, JOSE LOPEZ, was and still is an infant, suing herein by his Mother and Natural Guardian, AUGUSTINA BALU.

FIFTH: That at all the times hereinafter mentioned, the plaintiffs, K.S., and TEKYA BOOTHE, were and still are Citizens of the United States and are residents of the County of Kings, City and State of New York.

SIXTH: That at all the times hereinafter mentioned, the plaintiffs, JOSE LOPEZ and AUGUSTINA BALU, were and still are Citizens of the United States and are residents of the County of Queens, City and State of New York.

SEVENTH: At all times relevant hereto, defendant, OFFICER RUDOLPH GUARNACCIA, shield number 8793, Individually and as a New York City Police Officer, as well as other New York City Police Officers and employees, agents and/or servants of the City of New York, were assigned to the New York City Police Department as Officers employed by The City of New York. At all relevant times, they were acting in such capacity as the agent, servant, and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and was acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and The City of New York, and under the authority of their office as an Officer of the City of New York and of the State of New York. She is sued individually and in her official capacity.

EIGHTH: At all times relevant hereto, defendant, OFFICER JARAD DIETZEL, Individually and as a New York City Police Officer, as well as other New York City Police Officers and employees, agents and/or servants of the City of New York, were assigned to the New York City Police Department as Officers employed by The City of New York. At all relevant times, they were acting in such capacity as the agent, servant, and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and was acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and The City of New York, and under the authority of their office as an Officer of the City of New York and of the State of New York. She is sued individually and in her official capacity.

NINTH: At all times relevant hereto, defendant, OFFICER ABDULLAH, 942924, Individually and as a New York City Police Officer, as well as other New York City Police Officers and employees, agents and/or servants of the City of New York, were assigned to the New York City

Police Department as Officers employed by The City of New York. At all relevant times, they were acting in such capacity as the agent, servant, and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and was acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and The City of New York, and under the authority of their office as an Officer of the City of New York and of the State of New York. She is sued individually and in her official capacity.

TENTH: At all times relevant hereto, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were responsible for the training, supervision, and conduct of the defendants herein. It was also responsible by law for enforcing the regulations of The City of New York and The New York City Police Department, and for ensuring that The City of New York's personnel obey the laws of the City and State of New York and of the United States.

ELEVENTH: That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

TWELFTH: That at all times herein mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

THIRTEENTH: That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was a corporation doing business in the State of New York.

FOURTEENTH: That at all times herein mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a corporation doing business in the State of New York.

FIFTEENTH: Each and all of the acts of defendants alleged herein were done by defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City of New York and the State of New York, and under the authority of their office as Officers for the City of New York.

SIXTEENTH: On or about the 7th day of August, 2012 as to plaintiffs K.S. and TEKYA BOOTHE; and the 10th day of October, 2012 as to plaintiffs JOSE LOPEZ and AUGUSTINA BALU, and within ninety (90) days following the occurrence out of which the claim of the plaintiffs arose, the plaintiffs served a Notice of Claim against the defendants, in writing sworn to by said plaintiffs, containing all such information as pertained to the happening of the accident complained herein, to be served upon the defendant.

SEVENTEENTH: That this action is commenced within the statute of limitations after the cause of action arose.

EIGHTEENTH: That more than (30) days have elapsed since the aforesaid Notice of Claim was served on the defendants.

NINETEENTH: That the defendants were negligent and have refused and neglected to settle, adjust or pay said claim.

TWENTIETH: That all conditions and requirements precedent to the commencement of this action have been complied with.

TWENTY-FIRST: That the oral examination of the plaintiffs have been conducted in compliance with section 50-h of the General Municipal Law.

TWENTY-SECOND: That this action falls within one or more of the exceptions set forth in CPLR 1602.

TWENTY-THIRD: That pursuant to CPLR section 1602, the defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, by reason of the fact that defendants, their agents, servants and/or employees, owed the plaintiffs a non-delegable duty of care; that said defendants acted with reckless disregard for the safety of the plaintiffs and others; that the conduct of the defendants was intentional; that the defendants are vicariously liable for the negligent acts and omissions of others, including their agents, servants and/or employees, who caused or contributed to plaintiffs' damages; and that defendants acted knowingly or intentionally, and in concert, to cause the acts or omissions which are the proximate cause of plaintiffs' injuries.

TWENTY-FOURTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, operated a department, specifically THE NEW YORK CITY POLICE DEPARTMENT, as part of and in conjunction with its municipal function.

TWENTY-FIFTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, maintained said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

TWENTY-SIXTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, managed said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

TWENTY-SEVENTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees controlled said department, specifically THE NEW YORK CITY POLICE DEPARTMENT.

TWENTY-EIGHTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, employed officers to work as representatives and employees of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

TWENTY-NINTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed the defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, to work as a New York City Police Officer and a representative of THE CITY OF NEW YORK.

THIRTIETH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed the defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, to work as a New York City Police Officer and a representative of THE CITY OF NEW YORK.

THIRTY-FIRST: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed the defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, to work as a New York City Police Officer and a representative of THE CITY OF NEW YORK.

THIRTY-SECOND: That at all times herein mentioned, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to maintain and ensure that the actions, acts, activities and behavior of its agents, employees and/or servants, including the defendant Officers herein, conform to a certain standard of conduct established by law for the protection of others, including the plaintiff, against unreasonable risk of harm.

THIRTY-THIRD: That at all times herein mentioned, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had the duty to maintain and ensure that its agents, employees and/or servants, including the defendant Police Officer herein, act in such a manner as to not intentionally, wantonly and/or negligently injure others, including the plaintiff herein.

THIRTY-FOURTH: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers were an agent, servant, representative and/or employee of the defendant, THE CITY OF NEW YORK.

THIRTY-FIFTH: That at all times herein mentioned, defendant OFFICER JARAD DIETZEL, and other New York City Police Officers were an agent, servant, representative and/or employee of the defendant, THE CITY OF NEW YORK.

THIRTY-SIXTH: That at all times herein mentioned, defendant OFFICER ABDULLAH, 942924 and other New York City Police Officers were an agent, servant, representative and/or employee of the defendant, THE CITY OF NEW YORK.

THIRTY-SEVENTH: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, was an agent, servant representative and/or employee of the defendant THE NEW YORK CITY POLICE DEPARTMENT.

THIRTY-EIGHTH: That at all times herein mentioned, defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, was an agent, servant representative and/or employee of the defendant THE NEW YORK CITY POLICE DEPARTMENT.

THIRTY-NINTH: That at all times herein mentioned, defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, was an agent, servant representative and/or employee of the defendant THE NEW YORK CITY POLICE DEPARTMENT.

FORTIETH: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, had the duty to maintain and ensure that her actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiff, against unreasonable risk of harm.

FORTY-FIRST: That at all times herein mentioned, defendant OFFICER JARAD DIETZEL and other New York City Police Officers, had the duty to maintain and ensure that her actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiff, against unreasonable risk of harm.

FORTY-SECOND: That at all times herein mentioned, defendant OFFICER ABDULLAH, 924942, and other New York City Police Officers, had the duty to maintain and ensure that her actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiff, against unreasonable risk of harm.

FORTY-THIRD: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

FORTY-FOURTH: That at all times herein mentioned, defendant OFFICER JARAD DIETZEL and other New York City Police Officers, had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

FORTY-FIFTH: That at all times herein mentioned, defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

FORTY-SIXTH: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers had the duty to maintain and ensure that her actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

FORTY-SEVENTH: That at all times herein mentioned, defendant OFFICER JARAD DIETZEL and other New York City Police Officers had the duty to maintain and ensure that her actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

FORTY-EIGHTH: That at all times herein mentioned, defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers had the duty to maintain and ensure that her

actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

FORTY NINTH: That at all times herein mentioned, defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

FIFTIETH: Upon information and belief, that on July 14, 2012, the infant plaintiffs were lawfully at or near the location known as Glenmore Avenue, at or near the intersection with Berriman Street, Kings County, City and State of New York, and were lawfully at the aforementioned location.

FIFTY-FIRST: Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, were present at the aforementioned location.

FIFTY-SECOND: Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, were present at the aforementioned location.

FIFTY-THIRD: Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, were present at the aforementioned location.

FIFTY-FOURTH: Upon information and belief, that at the aforesaid time and place, Police Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, were present at the aforementioned location in the scope and course of their employment as New York City Police Officers.

FIFTY-FIFTH: Upon information and belief, that at the aforesaid time and place, Police Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, were present at the aforementioned location in the scope and course of their employment as New York City Police Officers.

FIFTY-SIXTH: Upon information and belief, that at the aforesaid time and place, Police Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, were present at the aforementioned location in the scope and course of their employment as New York City Police Officers.

FIFTY-SEVENTH: Upon information and belief, at the aforesaid time and place, the plaintiff, K.S., was forcibly grabbed by the aforementioned defendant Officers, and was struck, pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers.

FIFTY-EIGHTH: Upon information and belief, at the aforesaid time and place, the plaintiff, K.S., was forcibly grabbed by the aforementioned defendant Officers, and was struck,

pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL, and other New York City Police Officers.

FIFTY-NINTH: Upon information and belief, at the aforesaid time and place, the plaintiff, K.S., was forcibly grabbed by the aforementioned defendant Officers, and was struck, pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers.

SIXTIETH: Upon information and belief, at the aforesaid time and place, the plaintiff, JOSE LOPEZ, was forcibly grabbed by the aforementioned defendant Officers, and was struck, pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers.

SIXTY-FIRST: Upon information and belief, at the aforesaid time and place, the plaintiff, JOSE LOPEZ, was forcibly grabbed by the aforementioned defendant Officers, and was struck, pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL, and other New York City Police Officers.

SIXTY-SECOND: Upon information and belief, at the aforesaid time and place, the plaintiff, JOSE LOPEZ, was forcibly grabbed by the aforementioned defendant Officers, and was struck, pushed, punched, battered, hit, handcuffed, threatened verbally and physically and assaulted by the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers.

SIXTY-THIRD: Upon information and belief, at the aforesaid time and place, the plaintiffs, K.S. and JOSE LOPEZ, both infants, were forcibly grabbed by the aforementioned defendant Officers, and were struck, pushed, punched, battered, hit, threatened verbally and physically and assaulted by the aforementioned defendant police officers, and were placed in handcuffs with the handcuffs too tight, and were denied the ability to speak to their parents, by the aforementioned defendant New York City Police Officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793.

SIXTY-FOURTH: Upon information and belief, at the aforesaid time and place, the plaintiffs, K.S., and JOSE LOPEZ, both infants, were forcibly grabbed by the aforementioned defendant Officers, and were struck, pushed, punched, battered, hit, threatened verbally and physically and assaulted by the aforementioned defendant police officers, and were placed in handcuffs with the handcuffs too tight, and were denied the ability to speak to their parents, by the aforementioned defendant New York City Police Officers, including defendant OFFICER JARAD DIETZEL.

SIXTY-FIFTH: Upon information and belief, at the aforesaid time and place, the plaintiffs, K.S., and JOSE LOPEZ, both infants, were forcibly grabbed by the aforementioned defendant Officers, and were struck, pushed, punched, battered, hit, threatened verbally and physically and assaulted by the aforementioned defendant police officers, and were placed in handcuffs with the handcuffs too tight, and were denied the ability to speak to their parents, by the aforementioned defendant New York City Police Officers, including defendant OFFICER ABDULLAH, 942924.

SIXTY-SIXTH: Upon information and belief, at the aforementioned time and place, plaintiff, K.S., was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and

battered by the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers.

SIXTY-SEVENTH: Upon information and belief, at the aforementioned time and place, plaintiff, K.S., was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and battered by the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL.

SIXTY-EIGHTH: Upon information and belief, at the aforementioned time and place, plaintiff, K.S., was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and battered by the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924.

SIXTY-NINTH: Upon information and belief, at the aforementioned time and place, plaintiff, JOSE LOPEZ, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and battered by the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers.

SEVENTIETH: Upon information and belief, at the aforementioned time and place, plaintiff, JOSE LOPEZ, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and battered by the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL, and other New York City Police Officers.

SEVENTY- SECOND: Upon information and belief, at the aforementioned time and place, plaintiff, JOSE LOPEZ, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed and battered by the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 924942, and other New York City Police Officers.

SEVENTY-THIRD: Upon information and belief, at the aforementioned time and place, plaintiffs, K.S. and JOSE LOPEZ, were wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed, battered, placed in handcuffs with the handcuffs too tight and denied access to their parents by the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793.

SEVENTY-FOURTH: Upon information and belief, at the aforementioned time and place, plaintiffs, K.S. and JOSE LOPEZ, were wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed, battered, placed in handcuffs with the handcuffs too tight and denied access to their parents by the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL.

SEVENTY-FIFTH: Upon information and belief, at the aforementioned time and place, plaintiffs, K.S. and JOSE LOPEZ, were wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, beaten, punched, struck and threatened with a deadly weapon, pushed, battered, placed in handcuffs with the handcuffs too tight and denied access to their parents by the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924.

SEVENTY-SIXTH: Upon information and belief, the abuse to which plaintiffs were subjected was consistent with an institutionalized practice of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, which was adopted and ratified by the aforementioned defendant Officers, the defendants having at no time taken any effective action to prevent the police personnel from continuing to engage in such misconduct.

SEVENTY-SEVENTH: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior notice of the vicious propensities of the aforementioned defendant Officers, but took no steps to train them, correct their abuse of authority, or to discourage their unlawful use of authority.

SEVENTY-EIGHTH: The failure of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT to properly train the aforementioned defendant Officer defendants included the failure to instruct them in applicable provisions of the New York City and State Law Enforcement Law, and with proper and prudent use of force.

SEVENTY-NINTH: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, tolerated as institutionalized practices, and ratified the misconduct hereinbefore detailed by failing to properly discipline, restrict, and control employees, including the aforementioned defendant Officers; by failing to take adequate precautions in the hiring, promotion, and retention of an Officer, including specifically the aforementioned defendant Officers; by failing to establish and/or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of Officer misconduct, but instead responding to such complaints with bureaucratic power and official denials calculated to mislead the public. This conduct also constitutes gross negligence under state law.

EIGHTIETH: That by reason of the foregoing, the infant plaintiff, K.S., was injured.

EIGHTY-FIRST: That by reason of the foregoing, the infant plaintiff, JOSE LOPEZ, was injured.

EIGHTY-SECOND: That by reason of the foregoing, the plaintiffs, TEKYA BOOTHE and AUGUSTINA BALU, were injured and suffered the loss of services of their infant children.

EIGHTY-THIRD: That the foregoing occurrences and the resulting injuries to the plaintiffs were caused solely by the carelessness, recklessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, brutal use of force, wrongful assault and battery done by the defendants, their agents, servants and/or employees, including the defendant Officers named herein, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, negligence or provocation on the part of the plaintiffs herein

EIGHTY-FOURTH: That by reason of the foregoing, these plaintiffs were rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and their injuries caused great physical pain and emotional pain, some of which are permanent in nature, and plaintiffs will be permanently caused to suffer pain, inconvenience and other effects of said injuries; and plaintiffs have and will incur further expenses to care for said injuries and have and will in the future suffer loss of time and earnings from employment, and plaintiffs will be unable to perform their usual daily and customary activities as they did prior, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

EIGHTY-FIFTH: As a consequence of the abuse of authority detailed above, plaintiffs sustained the damages hereinbefore alleged, and hereby make claims for punitive damages for the acts complained of herein.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFFS K.S., JOSE LOPEZ, TEKYA BOOTHE and AUGUSTINA
BALU: RESPONDEAT SUPERIOR**

EIGHTY-SIXTH: Plaintiffs repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "EIGHTY-FIFTH" with the same force and effect as if fully set forth herein.

EIGHTY-SEVENTH: On or about July 14, 2012, plaintiffs were the victim of the tortious conduct perpetrated by Defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, whose tortious conduct consisted of assault, battery, intentional infliction of emotional distress, negligence, violating the plaintiffs' civil rights, slander, excessive force, false arrest and imprisonment, failing to provide reasonable and adequate medical care and acting with deliberate indifference to plaintiff's needs, and in otherwise carelessly and improperly exercising their authority and power.

EIGHTY-EIGHTH: On or about July 14, 2012, plaintiffs were the victim of the tortious conduct perpetrated by Defendant police officers, including defendant OFFICER JARAD DIETZEL whose tortious conduct consisted of assault, battery, intentional infliction of emotional distress, negligence, violating the plaintiffs' civil rights, slander, excessive force, false arrest and imprisonment, failing to provide reasonable and adequate medical care and acting with deliberate indifference to plaintiff's needs, and in otherwise carelessly and improperly exercising their authority and power.

EIGHTY-NINTH: On or about July 14, 2012, plaintiffs were the victim of the tortious conduct perpetrated by Defendant police officers, including defendant OFFICER ABDULLAH, 942924, whose tortious conduct consisted of assault, battery, intentional infliction of emotional distress, negligence, violating the plaintiffs' civil rights, slander, excessive force, false arrest and

imprisonment, failing to provide reasonable and adequate medical care and acting with deliberate indifference to plaintiff's needs, and in otherwise carelessly and improperly exercising their authority and power.

NINETIETH: At the aforesaid time and place, and at all times pertinent to this action, the aforementioned defendant Officers committed the aforementioned tortious conduct that injured the plaintiffs, as agents, servants, officers, and/or employees of the defendants, including the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

NINETY-FIRST: As a result of the aforementioned tortious conduct perpetrated by said defendants, their agents, servants, officers, and/or employees, plaintiffs suffered personal injuries, embarrassment, loss of self-esteem in the community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts.

NINETY-SECOND: At the time and place of the assault of the plaintiffs by the employees of the defendants, as aforesaid, such employees were acting within the scope of their employment duties for their employer, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT. Such tortious conduct thereby committed by defendants was egregious and oppressive and characterized by malice or wantonness justifying the imposition of punitive damages therefor.

NINETY-THIRD: The imposition of punitive damages on defendants, their agents, servants, officers, and employees, for the egregious tortious conduct of defendants' employees, is justified on the grounds that defendants, their agents, servants, officers, and employees were

reckless or wanton in retaining the employees who committed the torts after knowledge of the employees' proclivities to engage in such conduct.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS K.S., JOSE LOPEZ, TEKYA
BOOTHE and AUGUSTINA BALU: NEGLIGENCE IN
PERFORMANCE OF DUTIES**

NINETY-FOURTH: Plaintiffs repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "NINETY-THIRD" with the same force and effect as if fully set forth herein.

NINETY-FIFTH: At the aforesaid time and place, plaintiffs were a victim of negligence on the part of the defendants, their agents, servants, officers, and employees, which consisted of violating the plaintiffs' civil rights, assault, battery, slander, excessive force, false arrest and imprisonment, failure to provide reasonable and adequate medical care and acting with deliberate indifference to the plaintiffs, and in otherwise carelessly and improperly exercising its authority and power.

NINETY-SIXTH: That the defendants, their agents, servants, officers, and employees negligently, carelessly, and recklessly performed their police officer duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and without provocation negligently assaulted the plaintiffs; negligently, carelessly and recklessly used the threat of physical injury to the plaintiffs and actually caused physical injury upon the plaintiffs thereat; failed to provide adequate medical care after the plaintiffs requested such; negligently threatened the plaintiffs; and in that the defendants, their agents, servant and employees were otherwise careless, reckless and negligent.

NINETY-SEVENTH: As a direct and proximate cause of the negligence described above, plaintiffs suffered personal injuries and damages, embarrassment, loss of self-esteem in the community, anxiety, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS K.S., JOSE LOPEZ, TEKYA
BOOTHE and AUGUSTINA BALU: NEGLIGENT HIRING**

NINETY-EIGHTH: Plaintiffs repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "ONE" through "NINETY-SEVEN" with the same force and effect as if fully set forth herein.

NINETY-NINTH: On or before July 14, 2012, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, hired defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, as agents, servants, officers and/or employees.

ONE HUNDRED: On or before July 14, 2012, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, hired defendant police officers, including defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, as agents, servants, officers and/or employees.

ONE HUNDRED AND FIRST: On or before July 14, 2012, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, hired defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, as agents, servants, officers and/or employees.

ONE HUNDRED AND SECOND: Upon information and belief, the aforementioned defendant Police Officers continued to be employed by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through and including July 14, 2012, as agents, servants, officers and/or employees.

ONE HUNDRED AND THIRD: On or about July 14, 2012, the aforementioned defendant Officers were incompetent and unfit to perform the work required in their capacity as agents, servants, officers and/or employees for the defendants.

ONE HUNDRED AND FOURTH: Upon information and belief, defendants knew or in the exercise of reasonable care, should have known that a person in plaintiffs' position would be subjected to an unreasonable risk of harm from the aforementioned defendants, who were New York City Police Officers.

ONE HUNDRED AND FIFTH: Upon information and belief, at all times hereinafter mentioned, the defendants breached the duty it owed to plaintiffs to use reasonable care in hiring its employees by its failure to conduct a reasonable investigation into the backgrounds and characters of the aforementioned defendant Officers prior to the time they were hired by the defendants.

ONE HUNDRED AND SIXTH: Upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they hired the aforementioned defendant Officers, breached the duty it owed to plaintiffs to use reasonable care in hiring its employees by hiring said Officers when defendants, prior to the time of such hiring, knew or should have known that the defendant Officers were incompetent or unfit for employment.

ONE HUNDRED AND SEVENTH: On or about July 14, 2012, the aforementioned defendant Officers assaulted and battered the plaintiffs, intentionally inflicted emotional distress on plaintiffs, violated the plaintiffs' civil rights, slandered, falsely arrested and imprisoned, used excessive force on, failed to provide reasonable and adequate medical care, and otherwise carelessly and improperly exercised their authority and power as against the plaintiffs.

ONE HUNDRED AND EIGHTH: As a direct and proximate result of defendants' breach of duty in hiring the aforementioned defendant Officers, plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they were rendered sick, sore, lame and disabled and so remain, and have expended and incurred diverse sums of money in an effort to cure themselves of said injuries to extricate themselves from the indignities and humiliation felt by them due to the actions of the defendants, their agents, servants, and employees, including counsel fees and disbursements and, upon information and belief, will expend further sums in that direction, and the plaintiffs have been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS K.S., JOSE LOPEZ, TEKYA
BOOTHE and AUGUSTINA BALU: NEGLIGENT TRAINING AND
SUPERVISION**

ONE HUNDRED AND NINTH: Plaintiffs repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "ONE" through "ONE HUNDRED AND EIGHTH" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND TENTH: That the defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular, the aforementioned defendants, in that they failed to train their

employees in the proper way to maintain order; to control their tempers and exercise the proper demeanor and temperament; and to otherwise act as reasonable, prudent corrections officers; failed to give them proper instruction as to their demeanor, behavior and conduct as representatives of their employer; and, in that the defendants, their agents, servants, and employees were otherwise reckless, careless and negligent.

ONE HUNDRED AND ELEVENTH: That the aforesaid occurrence and the resulting injuries to plaintiffs' mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiffs.

ONE HUNDRED AND TWELFTH: That by reason of the aforesaid, the plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they were rendered sick, sore, lame and disabled and so remain, and have expended and incurred diverse sums of money in an effort to cure themselves of said injuries, to extricate themselves from the indignities and humiliation felt by them due to the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiffs have been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS K.S., JOSE LOPEZ, TEKYA
BOOTHE and AUGUSTINA BALU:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

ONE HUNDRED AND THIRTEENTH: Plaintiffs, repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "ONE-HUNDRED AND TWELFTH" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND FOURTEENTH: The acts of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, officers and/or employees, more specifically the aforementioned defendant Officers, described herein were done willfully, maliciously, outrageously, deliberately, and purposely with the intention to inflict emotional distress upon plaintiffs and/or were done in reckless disregard of the probability of causing plaintiffs emotional distress, and these acts did in fact result in severe and extreme emotional distress.

ONE HUNDRED AND FIFTEENTH: As a direct and proximate result of the acts mentioned above, plaintiffs were caused to incur severe and grievous mental and emotional suffering, fright, anguish, shock, nervousness, anxiety, and feelings of vulnerability. Plaintiffs continue to be fearful, anxious, and nervous, for which they were required to seek and receive medical treatment, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS K.S., JOSE LOPEZ, TEKYA
BOOTHE and AUGUSTINA BALU: ASSAULT AND BATTERY**

ONE HUNDRED AND SIXTEENTH: Plaintiffs, repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through " ONE HUNDRED AND FIFTEENTH" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND SEVENTEENTH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, violently assaulted the infant plaintiff K.S., by punching, kicking, grabbing, pushing, pulling and

striking the plaintiff, and by verbally and physically threatening the plaintiff while pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tight and in threatening the plaintiff.

ONE HUNDRED AND EIGHTEENTH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL, and other New York City Police Officers, violently assaulted the infant plaintiff K.S., by punching, kicking, grabbing, pushing, pulling and striking the plaintiff, and by verbally and physically threatening the plaintiff while pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tight and in threatening the plaintiff.

ONE HUNDRED AND NINETEENTH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, violently assaulted the infant plaintiff K.S., by punching, kicking, grabbing, pushing, pulling and striking the plaintiff, and by verbally and physically threatening the plaintiff while pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tight and in threatening the plaintiff.

ONE HUNDRED AND TWENTIETH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, violently assaulted the infant plaintiff JOSE LOPEZ by punching, kicking, grabbing, pushing, pulling and striking the plaintiff, and by verbally and physically threatening the plaintiff while

pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tightly and in threatening the plaintiff.

ONE HUNDRED AND TWENTY-FIRST: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL and other New York City Police Officers, violently assaulted the infant plaintiff JOSE LOPEZ by punching, kicking, grabbing, pushing, pulling and striking the plaintiff, and by verbally and physically threatening the plaintiff while pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tightly and in threatening the plaintiff.

ONE HUNDRED AND TWENTY-SECOND: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, violently assaulted the infant plaintiff JOSE LOPEZ by punching, kicking, grabbing, pushing, pulling and striking the plaintiff, and by verbally and physically threatening the plaintiff while pushing the plaintiff down and causing him to strike the ground and a fence, in placing handcuffs on the plaintiff too tightly and in threatening the plaintiff.

ONE HUNDRED AND TWENTY-THIRD: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, and other New York City Police Officers, violently assaulted the infant plaintiffs, K.S. and JOSE LOPEZ, by striking the plaintiffs and by verbally and physically threatening the plaintiffs and denying the infant plaintiffs the ability to see and/or speak to their parents, and in threatening the infant plaintiffs.

ONE HUNDRED AND TWENTY-FOURTH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER JARAD DIETZEL and other New York City Police Officers, violently assaulted the infant plaintiffs, K.S. and JOSE LOPEZ, by striking the plaintiffs and by verbally and physically threatening the plaintiffs and denying the infant plaintiffs the ability to see and/or speak to their parents, and in threatening the infant plaintiffs.

ONE HUNDRED AND TWENTY-FIFTH: Upon information and belief, that on or about July 14, 2012, the aforementioned defendant police officers, including defendant OFFICER ABDULLAH, 942924, and other New York City Police Officers, violently assaulted the infant plaintiffs, K.S. and JOSE LOPEZ, by striking the plaintiffs and by verbally and physically threatening the plaintiffs and denying the infant plaintiffs the ability to see and/or speak to their parents, and in threatening the infant plaintiffs.

ONE HUNDRED AND TWENTY-SIXTH: That the aforementioned defendant Officers, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted the infant plaintiff, K.S., in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that act caused apprehension of such contact in the plaintiff, and defendants, in a hostile and/or offensive manner assaulted the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused the plaintiff to be in fear of immediate death and/or bodily harm, and did in fact make contact with the plaintiff and caused plaintiff bodily harm.

ONE HUNDRED AND TWENTY-SEVENTH: That the aforementioned defendant Officers, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted the infant plaintiff, JOSE LOPEZ, in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that act caused apprehension of such contact in the plaintiff, and defendants, in a hostile and/or offensive manner assaulted the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused the plaintiff to be in fear of immediate death and/or bodily harm, and did in fact make contact with the plaintiff and caused plaintiff bodily harm.

ONE HUNDRED AND TWENTY-EIGHTH: That the aforementioned defendant Officers, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted the infant plaintiffs, K.S. and JOSE LOPEZ, in that the defendants denied the infant plaintiffs access to their parents and caused plaintiffs bodily harm.

ONE HUNDRED AND TWENTY-NINTH: The defendants' actions were willful, intentional and unwarranted, without any just cause of provocations.

ONE HUNDRED AND THIRTIETH: That as a result, infant plaintiff, K.S., has been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

ONE HUNDRED AND THIRTY-FIRST: That as a result, infant plaintiff, JOSE LOPEZ, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

ONE HUNDRED AND THIRTY-SECOND: That as a result, plaintiffs, TEKYA BOOTHE and AUGUSTINA BALU, have been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS K.S., JOSE LOPEZ,
TEKYA BOOTHE and AUGUSTINA BALU: EXCESSIVE FORCE**

ONE HUNDRED AND THIRTY-THIRD: Plaintiffs repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "ONE HUNDRED AND THIRTY-SECOND" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND THIRTY-FOURTH: Plaintiffs allege that their assault and battery by the defendants, their agents, servants, officers, and/or employees, with the use of excessive force was in violation of their federal and state constitutional and civil rights, as said defendants acted with deliberate indifference to the plaintiffs' civil and constitutional rights.

ONE HUNDRED AND THIRTY-FIFTH: The defendants, their, agents, servants, officers, and/or employees acted under color of the authority of law as Police Officers for THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

ONE HUNDRED AND THIRTY-SIXTH: Plaintiffs allege that the force used by the defendants, their agents, servants, officers, and employees was unreasonable in light of the circumstances of the assault, battery and excessive force and thereby violated the rights of the plaintiffs under the First, Fourth, Fifth, Eighth and Fourteenth Amendment right to be free from such treatment.

ONE HUNDRED AND THIRTY-SEVENTH: Plaintiffs allege that the force used by the defendants, their agents, servants, officers, and employees was unreasonable in light of the

circumstances of the assault and thereby violated the rights of the plaintiffs under New York Civil Rights Law §40-c.

ONE HUNDRED AND THIRTY-EIGHTH: The assault and battery on the plaintiffs was unconstitutional as the defendants did not have to injure the plaintiffs in such a manner as plaintiffs were not a threat to their well-being. The assault and battery committed by the defendants was not done in a good faith effort to maintain or restore order, but rather was done maliciously and sadistically to cause harm.

ONE HUNDRED AND THIRTY-NINTH: The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, was excessive, unnecessary, unwarranted, unjustified, without cause, willful, wanton, malicious, intentional, and with clear intent to deprive the plaintiffs of their rights, privileges, and immunities secured to them under the Constitution of the United States of America and of the City and State of New York, Acts of the Congress of the United States of America, which provide for the equal rights of citizens of the United States, and which rights, privileges and immunities are guaranteed by the Due Process Clauses of the Constitution of the United States of America and Title 42, United States Code, Section 1983 justifying the imposition of punitive damages therefor.

ONE HUNDRED AND FORTIETH: The defendants, their agents, servants and employees severely assaulted and battered the plaintiffs and deprived them of their rights and liberties as set forth in the Constitution of the United States and of the City and State of New York, in that they continued to assault and batter the plaintiffs, without any conduct on the part of the plaintiffs to so warrant; to wit; in that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiffs; in that the defendants, their agents, servants and employees caused an assault and battery when

they in a hostile and/or offensive manner threatened and caused serious injury to the plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs, all without warrant, probable cause or any lawful cause whatever; in that the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and employees and in their hiring practices in the exercise of their police officer function and their failure to enforce the laws of the State of New York and the United States is evidence of the reckless lack of cautious regard for the rights of citizens of the State of New York and the United States including plaintiffs and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants; in the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions and their failure to enforce the laws of the State of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the dangers of harm and injury to the citizens of the State of New York including plaintiff; in that the acts of the defendants, their agents, servants and employees herein, the failure of the defendants to discipline and properly hire the defendants and the continued employment of the defendants present a clear and present danger to the citizens of the City and State of New York; in that the defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that violated the constitutional rights of the plaintiffs; in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, and under the authority of their office as police officers for said City and State, and

for the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

ONE HUNDRED AND FORTY-FIRST: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and the herein individually named police officers who are agents, servants, and employees of defendants, including the aforementioned police officers and defendant OFFICER RUDOLPH GUARNACCIA, shield number 8793, acting under color of law, have subjected plaintiffs and other persons to a pattern of conduct consisting of assault, battery, libel, slander, excessive force, negligence, false imprisonment, failure to provide reasonable and adequate medical care and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed plaintiffs, and other citizens by the Constitution of the United States and the State of New York.

ONE HUNDRED AND FORTY-SECOND: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and the herein individually named police officers who are agents, servants, and employees of defendants, including the aforementioned police officers and defendant OFFICER JARAD DIETZEL acting under color of law, have subjected plaintiffs and other persons to a pattern of conduct consisting of assault, battery, libel, slander, excessive force, negligence, false imprisonment, failure to provide reasonable and adequate medical care and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed plaintiffs, and other citizens by the Constitution of the United States and the State of New York.

ONE HUNDRED AND FORTY-THIRD: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and the herein

individually named police officers who are agents, servants, and employees of defendants, including the aforementioned police officers and defendant OFFICER ABDULLAH, 942924, acting under color of law, have subjected plaintiffs and other persons to a pattern of conduct consisting of assault, battery, libel, slander, excessive force, negligence, false imprisonment, failure to provide reasonable and adequate medical care and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed plaintiffs, and other citizens by the Constitution of the United States and the State of New York.

ONE HUNDRED AND FORTY-FOURTH: Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence and intimidation visited on plaintiffs, and other citizens of the City and State of New York, acting in concert with persons unknown to plaintiffs and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

ONE HUNDRED AND FORTY-FIFTH: Upon information and belief, although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiffs or other citizens injured thereby, or to take the proper disciplinary action against any of their employees or agents.

ONE HUNDRED AND FORTY-SIXTH: The unlawful and illegal conduct of the defendants, their agents, servants, and employees and each of them, deprived plaintiffs of the rights, privileges and immunities secured to them by the Constitution of the United States and of

the State of New York, more specifically thereat, the liberty interest in being free from bodily injury.

ONE HUNDRED AND FORTY-SEVENTH: The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, is of the type that shocks the conscience and entitles plaintiffs to an award of punitive damages.

ONE HUNDRED AND FORTY-EIGHTH: As a direct and proximate cause of the aforementioned actions, plaintiffs have suffered severe personal injuries, embarrassment, loss of self-esteem in the community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological.

ONE HUNDRETH AND FORTY-NINTH: Pursuant to 42 U.S.C. section 1983, plaintiffs seek an award of attorney fees and costs incurred in bringing this action.

ONE HUNDRED AND FIFTIETH: That by reason of the aforesaid, the plaintiffs request the following relief:

- A) Compensatory damages for pain and suffering in a sum which exceeds the jurisdictional limits of all lower courts;
- B) Punitive damages in a sum which exceeds the jurisdictional limits of all lower courts;
- C) An award of reasonable attorney's fees, costs and disbursements;

**AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS K.S., JOSE
TEKYA BOOTHE and AUGUSTINA BALU:
UNINTENTIONAL RESULT OF INTENTIONAL ACT**

ONE HUNDRED AND FIFTY-FIRST: Plaintiffs, repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "ONE HUNDRED AND FIFTIETH" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND FIFTY-SECOND: That the damages sustained by the plaintiffs were the unintentional result of the intentional acts of the defendants discussed herein.

ONE HUNDRED AND FIFTY-THIRD: That by reason of the aforesaid, the plaintiffs were rendered sick, sore, lame, and disabled, and their injuries upon information and belief, are of a permanent character. That by reason thereof, they have been obliged to incur expense and obligations for medicines, medical care, attention and treatment and they are informed and they verily believe that they will in the future be obliged to incur further expense and obligations for medicines, medical care, attention and treatment and continue to have pain and suffering and be unable to follow their current vocation, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS TEKYA BOOTHE: LOSS OF
SOCIETY AND EXPENSES**

ONE HUNDRED AND FIFTY-FOURTH: Plaintiffs, repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through "ONE HUNDRED AND FIFTY-THIRD" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND FIFTY-FIFTH: That at all times hereinafter mentioned, the plaintiff, TEKYA BOOTHE, was and still is the Mother of the infant plaintiff, K.S., in the previous causes of action, and as said parent has ever since the date of the occurrence herein been supporting for and providing for said child.

ONE HUNDRED AND FIFTY-SIXTH: That prior to the time of the occurrence, plaintiff, K.S., was and had been in good health and was fully capable of performing and actually did perform all the duties of a child in their dwelling for this plaintiff.

ONE HUNDRED AND FIFTY-SEVENTH: That by reason of and in consequence of the aforementioned, this plaintiff was obliged to and did necessarily employ medical aid and attention for said child, did necessarily pay and become liable therefore and upon information and belief, this plaintiff will be obliged to pay and become liable therefore and upon information and belief, this plaintiff will be obliged to expend various sums of money for medical aid and attention for said child for a long period of time to come; that as a further consequence of said injuries, this plaintiff has been deprived of the comfort and happiness of said child's company and society and this plaintiff is informed and verily believes that such loss and impairment will necessarily continue for a long period of time to come, all to this plaintiff's damage in an amount within the jurisdictional limits of this Court.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS AUGUSTINA BALU: LOSS OF
SOCIETY AND EXPENSES**

ONE HUNDRED AND FIFTY-EIGHTH: Plaintiffs, repeat, reiterate, and reallege each and every allegation as set forth in paragraphs numbered "FIRST" through " ONE HUNDRED AND FIFTY-SEVENTH" with the same force and effect as if fully set forth herein.

ONE HUNDRED AND FIFTY-NINTH: That at all times hereinafter mentioned, the plaintiff, AUGUSTINA BALU, was and still is the Mother of the infant plaintiff, JOSE LOPEZ, in the previous causes of action, and as said parent has ever since the date of the occurrence herein been supporting for and providing for said child.

ONE HUNDRED AND SIXTIETH: That prior to the time of the occurrence, plaintiff, JOSE LOPEZ, was and had been in good health and was fully capable of performing and actually did perform all the duties of a child in their dwelling for this plaintiff.

ONE HUNDRED AND SIXTY-FIRST: That by reason of and in consequence of the aforementioned, this plaintiff was obliged to and did necessarily employ medical aid and attention for said child, did necessarily pay and become liable therefore and upon information and belief, this plaintiff will be obliged to pay and become liable therefore and upon information and belief, this plaintiff will be obliged to expend various sums of money for medical aid and attention for said child for a long period of time to come; that as a further consequence of said injuries, this plaintiff has been deprived of the comfort and happiness of said child's company and society and this plaintiff is informed and verily believes that such loss and impairment will necessarily continue for a long period of time to come, all to this plaintiff's damage in an amount within the jurisdictional limits of this Court.

WHEREFORE, the plaintiffs demand judgment against the defendants on the First cause of action in a sum which exceeds the jurisdictional limits of all lower Courts, and for punitive damages; on the Second cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Third cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fourth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fifth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Sixth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Seventh cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Eighth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts and punitive damages in an amount which exceeds the jurisdictional limits of all

lower Courts, as well as attorney's fees in a sum within the jurisdictional limits of this Court; in the Ninth cause of action in a sum which exceeds the jurisdictional limits of all lower courts; in the Tenth cause of action in a sum within the jurisdictional limits of this court; in the Eleventh cause of action in a sum within the jurisdictional limits of this court; and for such other, further, and different relief as to this Court may seem just and proper.

Dated: Mineola, New York
June 25, 2018

Respectfully Submitted,

SANDERS, SANDERS, BLOCK, WOYCIK,
VIENER & GROSSMAN, P.C.

Attorneys for Plaintiffs

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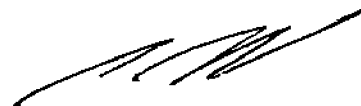
ATTORNEY'S VERIFICATION

Michael Villeck an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at SANDERS, SANDERS, BLOCK, WOYCIK, VIENER & GROSSMAN, P. C., attorneys of record for Plaintiffs, **K.S., TEKYA BOOTHE, JOSE LOPEZ and AUGUSTINA BALU**. I have read the annexed **SECOND AMENDED SUMMONS and VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: Mineola, New York
June 25, 2018



MICHAEL VILLECK, ESQ.

Index No. 508277/2013
 SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF KINGS

K.S., an infant under the age of 16 years, by his mother and natural guardian, TEKYA BOOTHE, TEKYA BOOTHE, Individually, JOSE LOPEZ, an infant under the age of 16 years, by his mother and natural guardian, AUGUSTINA BALU, and AUGUSTINA BALU, Individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and "JOIN DOE" (a fictitious name), Individually and as a New York City Police Officer and employee of The City of New York,

Defendants.

SECOND AMENDED SUMMONS AND COMPLAINT

SANDERS, SANDERS, BLOCK, WOYCIK, VIENER & GROSSMAN, P.C.

Attorneys for Plaintiff

Office and Post Office Address, Telephone

100 Herricks Road

Mineola, New York 11501

Bus. (516) 741-5252

Fax (516) 741-0799

PLEASE TAKE NOTICE

NOTICE OF ENTRY	that the within is a <i>(certified)</i> true copy of a	duly
NOTICE OF	entered in the office of the clerk of the within named court on	
SETTLEMENT	that an Order of which the within is a true copy will be presented for settlement to the	
	Hon.	one of the judges of the
	within named court, at	at a.m.

ATTORNEY CERTIFICATION PURSUANT TO 22 NYCRR 130-1.1A

Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the courts of New York State, certified that, upon information and belief, and after reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: 05/21/2018

Yours, etc.,

SANDERS, SANDERS, BLOCK, WOYCIK, VIENER & GROSSMAN, P.C.

Attorneys for Plaintiff

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Mineola, New York 11501

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